

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 07/09/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 9:00 AM CASE NUMBER: C26-01545
CASE NAME: HUMMINGBIRD DEVELOPMENT LLC VS. AVETEX CONSTRUCTION INC.
HEARING IN RE: ORDER TO SHOW CAUSE REGARDING PRELIMINARY INJUNCTION, TEMPORARY RESTRAINING ORDER
FILED BY:
TENTATIVE RULING:

The Court has received no opposition to the Preliminary Injunction. It is granted.

Law & Motion

2. 9:00 AM CASE NUMBER: C23-01403
CASE NAME: GUPTA VS. NATIONSTAR MORTGAGE

HEARING ON SUMMARY MOTION JUDGMENT

FILED BY: NATIONSTAR MORTGAGE, LLC

TENTATIVE RULING:

The Court continues the hearing on this motion to July 30, 2026, at 9:00 a.m.

3. 9:00 AM CASE NUMBER: C24-00153

CASE NAME: ADRIANNA DUCKETT VS. ROGER CHANG

***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM**

FILED BY:

TENTATIVE RULING:

The Court is in receipt of the Declaration of Fatima Montanez Regarding Disbursement. The Declaration notes that forty-five settlement checks remain uncashed but does not indicate whether any checks were returned undelivered or confirm that it conducted an "Aggrieved Employee Address Search." Upon receipt of confirmation that all efforts to find and distribute funds to Aggrieved Employees previously approved by the Court have been complied with, the Court will approve the final distribution.

4. 9:00 AM CASE NUMBER: C24-02345

CASE NAME: CAROLINE SUN CHANG VS. BMW OF NORTH AMERICA, LLC

***HEARING ON MOTION IN RE: ATTORNEY'S FEES, COSTS, AND EXPENSES**

FILED BY: CHANG, CAROLINE SUN

TENTATIVE RULING:

Pursuant to a settlement agreement, Plaintiff Caroline Sun Change moves for a determination regarding her attorney's fees and costs. Defendants BMW of North America and Import Motors Inc object to the amount sought by Plaintiff. Although Plaintiff appeared to anticipate that Defendants would object to the fees in their entirety, that is not the case. Defendants also object that Plaintiff has not filed a Memorandum of Costs.

The Court noted several issues with Plaintiff's requested attorney's fees. Defendants identified many of these as well. Plaintiff appears to have overbilled in more than one way. The first notable overbilling relates to duplication. Plaintiff tends to bill 0.1 (or more) each to several completely related tasks, thus resulting in rounding up for each of those tasks. For example, Plaintiff bills separately for reviewing different chunks of documents, or for Drafting Special Interrogatories and the Declaration of Necessity.

The second area of overbilling relates to unreasonable amounts of time expended. For example, Plaintiff billed 0.4 (24 minutes) to reviewing each of the Defendant's Answers. These answers contained five pages of semi-substantive but entirely standard information and affirmative defenses. The Court was able to review these Answers in less than three minutes each, and the Court is not a lemon law expert. The disingenuous overbilling that is *easy* to identify renders suspect the other times